

Constitutional Governance Package

Charter, Bylaws, Entrenched Rights, Founder Limits & Board Independence

Version 0.2 | September 18, 2026
[[ORGANIZATION_NAME]]

Founding draft for adoption and Tennessee nonprofit counsel review. These documents intentionally set internal standards stricter than many legal minimums.

Contents

- Constitutional Integration Map
- Model Charter - Statutory Voting-Member Variant
- Model Charter - No-Statutory-Member Variant
- Model Bylaws - Common Core
- Schedule M - Statutory Voting-Member Model
- Schedule N - No-Statutory-Member Model
- Board Reserved Powers Schedule
- Founder Covenant
- Board Independence Standard
- Legal and Compliance Source Notes

Constitutional Integration Map

Framework safeguard	Charter	Bylaws	Policy/SOP	Operational evidence
Freedom of conscience	Entrenched principle	Rights article	Anti-coercion + pastoral ethics	Participant notice, complaint metrics
No infallible living authority	Founder/authority limitation	Founder article	Revelation/doctrine protocol	Annual founder covenant
Safe exit / no shunning	Entrenched principle	Participant rights	Exit/non-retaliation SOP	Exit log without reasons requirement
Board independence	Minimum independence standard	Board composition/terms	Independence standard	Annual director certifications
No self-compensation	Reserved-power clause	Conflict/compensation sections	Compensation approval SOP	Compensation memo + comparability file
No self-investigation	Reserved-power clause	Integrity committee powers	Investigation protocol	Conflict screen + investigator TOR
Safeguarding	Entrenched duty to obey civil law	Safeguarding committee	TN safeguarding policy	Training, screening, incident log
Financial transparency	Mission/private inurement clauses	Finance article	Financial controls SOP	Budget, quarterly reports, external review
Whistleblowing/non-retaliation	Entrenched right	Complaints article	Complaint SOP	Intake log, retaliation reports
Epistemic humility	Optional charter principle	Doctrine/research article	Revelation/doctrine protocol	Doctrine change record
Entrenchment	Explicit amendment restriction	Two-stage amendment process	Change-control SOP	Amendment impact memo
External integrity review	Optional charter notice	Integrity article	Review TOR	Findings + remediation tracker

Hierarchy rule

When documents conflict, the controlling order should be: applicable law and valid court orders; charter; bylaws; entrenched framework schedules; board policies; SOPs; forms and guidance. No lower-level document may reduce a right or independence protection granted by a higher-level document.

Model Tennessee Charter - Statutory Voting-Member Variant

Organization: [[ORGANIZATION_NAME]]

Draft status: Counsel-review model, not filing-ready until placeholders are completed

Intended classification: Tennessee public benefit religious corporation; intended Section 501(c)(3) organization

Article 1. Name

The name of the corporation is [[ORGANIZATION_NAME]] (the "Corporation").

Article 2. Classification

The Corporation is a public benefit corporation, is a religious corporation, and is not for profit.

Article 3. Registered Office and Registered Agent

Initial registered office: [[REGISTERED_OFFICE_STREET, CITY, TN ZIP]]

County: [[COUNTY]]

Initial registered agent: [[REGISTERED_AGENT]]

Article 4. Principal Office

Initial principal office: [[PRINCIPAL_OFFICE_STREET, CITY, STATE ZIP]]

Mailing address, if different: [[MAILING_ADDRESS]]

Article 5. Incorporator

Name: [[INCORPORATOR_NAME]]

Address: [[INCORPORATOR_ADDRESS]]

Article 6. Members

The Corporation **will have members**. Membership classes, qualifications, voting rights, discipline, resignation, and meetings shall be stated in the bylaws. No person shall be compelled to become or remain a member. Membership shall not create an ownership interest in corporate assets.

Article 7. Purposes

The Corporation is organized and shall be operated exclusively for religious, charitable, and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, including worship, religious formation, scholarship, historical and phenomenological inquiry, charitable service, community support, and activities reasonably related to those purposes.

No substantial part of the activities of the Corporation shall consist of carrying on propaganda or otherwise attempting to influence legislation except to the extent permitted for an organization exempt under Section 501(c)(3). The Corporation shall not participate or intervene in any political campaign on behalf of or in opposition to any candidate for public office to the extent prohibited by Section 501(c)(3).

Article 8. Private Inurement and Private Benefit

No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, any director, officer, founder, minister, employee, member, participant, or other private person, except that the Corporation may pay reasonable compensation for services actually rendered, reimburse properly documented expenses, and make payments in furtherance of its exempt purposes.

Article 9. Foundational Rights and Anti-Coercion Limits

The following principles bind the Corporation and every office created under it:

1. No human being, office, council, claimed revelation, tradition, or institutional act may compel another person's conscience through coercion, threat, manipulation, abuse of spiritual authority, or engineered material dependency.
2. No living founder, leader, teacher, prophet, elder, director, officer, clergy member, council, or successor is infallible, immune from criticism, or beyond investigation, suspension, correction, or removal.
3. Good-faith disagreement, criticism, complaint, reporting of misconduct, refusal of a religious practice, or departure shall not be grounds for retaliation.
4. Participation is voluntary. A person may leave without requiring spiritual release, payment, transfer of property, nondisparagement, confession, or permission.
5. The Corporation shall not require social shunning of a person merely because the person resigns, changes belief, criticizes leadership, or affiliates elsewhere.
6. Internal religious processes shall not be used to obstruct mandatory reporting, criminal investigation, tax obligations, court orders, child-protection duties, or other applicable civil requirements.
7. Institutional reputation, continuity, theology, finances, or loyalty to leadership shall never justify concealment of abuse, destruction of evidence, retaliation, or deception.

These provisions are intended as enforceable governance limitations and not merely aspirational statements.

Article 10. Board and Independence

Except during the formation transition stated in the bylaws, the board shall consist of not fewer than seven and not more than eleven voting directors. At least two-thirds of the voting directors shall be independent under standards stated in the bylaws. No founder or chief executive may possess unilateral authority to appoint or remove a board majority.

A formation board of five directors may serve for no more than 180 days after incorporation if necessary to organize the Corporation, provided a majority of that board is independent and the board adopts a written plan to reach seven directors before expiration of the transition.

Article 11. Founder Status

"Founder" is an historical designation only. It creates no ownership interest, veto, life tenure, power of succession, right to compensation, right to appoint a board majority, immunity from investigation, or superior claim to corporate assets. Any founder serving in an office is subject to the same conflicts, safeguarding, discipline, suspension, and removal rules applicable to others, plus any additional recusal rules in the bylaws.

Article 12. Reserved Integrity Powers

The bylaws shall reserve to the independent board or committees composed solely of disinterested directors final authority over executive appointment/removal, executive compensation, related-party transactions, allegations against senior leadership, safeguarding oversight, independent investigations, external financial review, and amendments that would materially diminish participant rights or board independence.

Article 13. Entrenched Provisions

Articles 8 through 13 and the dissolution restriction in Article 14 are "Entrenched Provisions." No Entrenched Provision may be suspended by emergency declaration, executive action, spiritual claim, doctrinal decree, or ordinary policy amendment.

An amendment that would repeal, narrow, suspend, or materially weaken an Entrenched Provision requires: (a) written notice describing the rights impact; (b) independent legal review; (c) consideration at two board

meetings separated by at least thirty days; (d) approval by at least eighty percent of all voting directors then in office, including at least eighty percent of all independent directors then in office; and approval by at least two-thirds of votes cast by statutory voting members at a meeting called specifically for that purpose, provided the notice includes the complete proposed amendment and rights-impact statement. A director with a personal financial or disciplinary interest in the amendment shall not vote.

Article 14. Dissolution

Upon dissolution, after payment or provision for lawful liabilities, the Corporation's assets shall be distributed solely to one or more organizations then recognized as exempt under Section 501(c)(3) and organized for religious, charitable, or educational purposes, or to a federal, state, or local government for a public purpose. No founder, director, officer, member, participant, employee, or private individual shall receive a distributive ownership share.

Article 15. Construction

The charter and bylaws should be construed, to the maximum extent lawful, to preserve freedom of conscience, board independence, safe reporting, safe exit, due process, safeguarding, and protection of charitable assets. If a lower-level policy conflicts with these principles, the higher-level protection controls.

Model Tennessee Charter - No-Statutory-Member Variant

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Mailing address, if different: [[MAILING_ADDRESS]]

Article 5. Incorporator

Name: [[INCORPORATOR_NAME]]

Address: [[INCORPORATOR_ADDRESS]]

Article 6. Members

The Corporation **will not have statutory members** within the meaning of the Tennessee Nonprofit Corporation Act. The bylaws may recognize congregants, participants, affiliates, ministers, volunteers, donors, or covenant participants, but those statuses do not constitute statutory corporate membership unless the charter is lawfully amended.

Article 7. Purposes

The Corporation is organized and shall be operated exclusively for religious, charitable, and educational purposes within the meaning of Section 501(c)(3) of the Internal Revenue Code, including worship, religious formation, scholarship, historical and phenomenological inquiry, charitable service, community support, and activities reasonably related to those purposes.

No substantial part of the activities of the Corporation shall consist of carrying on propaganda or otherwise attempting to influence legislation except to the extent permitted for an organization exempt under Section 501(c)(3). The Corporation shall not participate or intervene in any political campaign on behalf of or in opposition to any candidate for public office to the extent prohibited by Section 501(c)(3).

Article 8. Private Inurement and Private Benefit

No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, any director, officer, founder, minister, employee, member, participant, or other private person, except that the Corporation

may pay reasonable compensation for services actually rendered, reimburse properly documented expenses, and make payments in furtherance of its exempt purposes.

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3. Good-faith disagreement, criticism, complaint, reporting of misconduct, refusal of a religious practice, or departure shall not be grounds for retaliation.
4. Participation is voluntary. A person may leave without requiring spiritual release, payment, transfer of property, nondisparagement, confession, or permission.
5. The Corporation shall not require social shunning of a person merely because the person resigns, changes belief, criticizes leadership, or affiliates elsewhere.
6. Internal religious processes shall not be used to obstruct mandatory reporting, criminal investigation, tax obligations, court orders, child-protection duties, or other applicable civil requirements.
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These provisions are intended as enforceable governance limitations and not merely aspirational statements.

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A formation board of five directors may serve for no more than 180 days after incorporation if necessary to organize the Corporation, provided a majority of that board is independent and the board adopts a written plan to reach seven directors before expiration of the transition.

Article 11. Founder Status

"Founder" is an historical designation only. It creates no ownership interest, veto, life tenure, power of succession, right to compensation, right to appoint a board majority, immunity from investigation, or superior claim to corporate assets. Any founder serving in an office is subject to the same conflicts, safeguarding, discipline, suspension, and removal rules applicable to others, plus any additional recusal rules in the bylaws.

Article 12. Reserved Integrity Powers

The bylaws shall reserve to the independent board or committees composed solely of disinterested directors final authority over executive appointment/removal, executive compensation, related-party transactions, allegations against senior leadership, safeguarding oversight, independent investigations, external financial review, and amendments that would materially diminish participant rights or board independence.

Article 13. Entrenched Provisions

Articles 8 through 13 and the dissolution restriction in Article 14 are "Entrenched Provisions." No Entrenched Provision may be suspended by emergency declaration, executive action, spiritual claim, doctrinal decree, or ordinary policy amendment.

An amendment that would repeal, narrow, suspend, or materially weaken an Entrenched Provision requires: (a) written notice describing the rights impact; (b) independent legal review; (c) consideration at two board meetings separated by at least thirty days; (d) approval by at least eighty percent of all voting directors then in office, including at least eighty percent of all independent directors then in office; and a written opinion from an independent external integrity reviewer or qualified nonprofit counsel that the amendment does not materially reduce participant protection without a compelling lawful necessity, with the opinion included in the permanent corporate record. A director with a personal financial or disciplinary interest in the amendment shall not vote.

Article 14. Dissolution

Upon dissolution, after payment or provision for lawful liabilities, the Corporation's assets shall be distributed solely to one or more organizations then recognized as exempt under Section 501(c)(3) and organized for religious, charitable, or educational purposes, or to a federal, state, or local government for a public purpose. No founder, director, officer, member, participant, employee, or private individual shall receive a distributive ownership share.

Article 15. Construction

The charter and bylaws should be construed, to the maximum extent lawful, to preserve freedom of conscience, board independence, safe reporting, safe exit, due process, safeguarding, and protection of charitable assets. If a lower-level policy conflicts with these principles, the higher-level protection controls.

Model Bylaws - Common Core

Organization: [[ORGANIZATION_NAME]]

Version: 0.2

Status: Founding draft. Adopt only after selecting the member or nonmember schedule and counsel review.

Article I. Governing hierarchy and mission

1. These bylaws are subordinate to applicable law and the charter.
2. The Institutional Integrity & Anti-Coercion Framework, Participant Bill of Rights, Founder Covenant, and Board Reserved Powers Schedule are incorporated as board-governance schedules to the extent consistent with the charter.
3. No officer, minister, committee, employee, volunteer, or doctrinal body may override a charter or bylaw protection by invoking spiritual authority, emergency, custom, revelation, founder intent, or institutional necessity.
4. The Corporation shall pursue its religious, charitable, and educational mission while preserving freedom of conscience and voluntary participation.

Article II. Participation and notice of rights

1. Every participant shall have reasonable access to the Participant Bill of Rights, complaint channels, safeguarding reporting information, and current governance documents.
2. No participant is required to sign a waiver of non-retaliation, civil reporting rights, bodily autonomy, or access to independent legal/medical advice as a condition of ordinary participation.
3. Religious offices may have disclosed belief or conduct qualifications reasonably related to the role, but those qualifications shall not be enforced through coercive control.
4. The selected corporate-member schedule controls whether any participant also possesses statutory corporate membership rights.

Article III. Board of Directors

Section 3.1 Composition

After the formation transition, the board shall have 7-11 voting directors. At least two-thirds shall be independent. The board shall determine its exact size by resolution within that range, subject to the charter.

Section 3.2 Independence

A director is independent only if the Governance and Nominating Committee determines annually that the director: (a) is not an employee or subordinate of an employee; (b) is not an immediate family member of a senior employee, founder with executive authority, or another director; (c) has no material compensated vendor or business relationship with the Corporation; (d) does not receive material economic benefit from the Corporation other than properly approved director compensation, if any, and expense reimbursement; and (e) has no other relationship reasonably likely to impair objective judgment.

Section 3.3 Terms

Directors serve three-year staggered terms. No director may serve more than two consecutive full terms without at least a one-year break, except that a two-thirds vote of all independent directors may extend one director for up to one year solely to preserve continuity during an extraordinary transition. Partial initial terms used to establish staggering do not count as full terms.

Section 3.4 Election / appointment

The Governance and Nominating Committee shall publish or circulate candidate qualifications, conduct independence/conflict screening, document nominations, and prevent the founder or chief executive from controlling a board majority. The selected member/nonmember schedule specifies the final election method.

Section 3.5 Chair

The chair shall be independent and shall not simultaneously serve as chief executive, chief financial officer, lead clergy executive, or founder exercising executive authority.

Section 3.6 Removal

A director may be removed according to applicable Tennessee law, the charter, and the selected schedule. The bylaws intentionally require a two-thirds vote of directors then in office for removal of a board-elected director without cause, unless a greater threshold applies. Removal for a conflict, safeguarding failure, retaliation, dishonesty, persistent nonattendance, incapacity, or serious breach of fiduciary duty may be treated as for-cause removal under a documented process.

Section 3.7 Vacancies

Vacancies shall be filled using the same independence and nomination safeguards used for regular selection. A vacancy shall not be used to create founder or staff control.

Section 3.8 Meetings

The board shall meet at least quarterly. Independent directors shall meet in executive session at least twice per year without management, the founder, or non-independent directors present, and additionally whenever senior-leadership complaints, compensation, succession, or related-party matters require it.

Section 3.9 Access to advisers

The board and its independent committees may retain outside counsel, accountants, investigators, safeguarding professionals, compensation consultants, and other advisers at corporate expense when reasonably necessary for oversight.

Article IV. Officers and executive leadership

1. Required officers shall include a president or chief executive, secretary, and treasurer or chief financial officer, with duties assigned by board resolution.
2. No person may simultaneously serve as board chair and chief executive.
3. The board appoints, evaluates, compensates, suspends, and removes the chief executive.
4. Senior spiritual titles do not create corporate authority unless the bylaws or board expressly assign it.
5. The founder, if serving as an officer, serves under the same fixed appointment, evaluation, conflict, suspension, and removal processes as another officer.
6. A person who is subject to a credible allegation presenting a safeguarding, retaliation, financial-integrity, or evidence-interference risk may be placed on non-disciplinary administrative leave pending investigation.

Article V. Standing committees

5.1 Governance and Nominating Committee

Composed only of independent directors. Oversees nominations, board evaluation, independence determinations, succession process, and governance training.

5.2 Finance, Audit and Compensation Committee

Composed of a majority of independent directors and entirely disinterested directors for each transaction considered. Oversees budget, financial statements, external accounting review, executive compensation, restricted funds, and related-party transactions. No person participates in discussion or vote on their own economic benefit.

5.3 Safeguarding and Institutional Integrity Committee

Composed only of independent directors. Oversees complaint systems, non-retaliation, safeguarding, senior-leadership investigations, policy exceptions affecting participant rights, and the external integrity review. It may retain investigators without executive approval.

5.4 Doctrine and Research Council

An advisory religious/academic body may research and formulate teaching proposals. It does not control corporate investigations, compensation, safeguarding, elections, personal medical decisions, or individual conscience. Its procedures shall preserve sources, competing interpretations, confidence levels, and dissenting views for material doctrinal changes.

Article VI. Reserved powers

The board may delegate administration but not final responsibility for the matters in the Board Reserved Powers Schedule. No executive, founder, clergy council, or staff committee may exercise a reserved power except pursuant to a board-approved temporary delegation that is lawful, written, narrow, time-limited, and does not concern that person's own compensation, discipline, or conflict.

Article VII. Founder limitations and succession

1. Founder is an historical designation, not a corporate office unless separately elected or appointed.
2. The founder has no veto, ownership share, unilateral board-appointment power, right to select a successor, immunity, or automatic compensation.
3. Succession to executive or spiritual leadership shall be conducted by the Governance and Nominating Committee with conflict screening and an open candidate-identification process reasonably suited to the role.
4. A spouse, descendant, relative, business partner, close associate, or designated disciple of a founder receives no preference and must satisfy the same independent process.
5. The founder shall recuse from compensation, family employment, related-party transactions, complaints against the founder or close associates, investigator selection for such complaints, and succession in which the founder or relative is a candidate.
6. A serving founder signs the Founder Covenant annually.

Article VIII. Conflicts, compensation, and related-party transactions

1. Directors and senior leaders disclose actual, potential, and apparent conflicts at appointment and at least annually, and update them promptly.
2. A conflicted person leaves deliberation and vote except to provide requested factual information before recusal.
3. Executive compensation shall be approved in advance by disinterested directors using appropriate comparability data and contemporaneous documentation.
4. Related-party transactions require documented alternatives, fairness analysis, recusal, and approval by disinterested directors. Material transactions should be reviewed by outside counsel or an independent adviser.

5. Loans to insiders, use of corporate assets for private purposes, and undocumented reimbursements are prohibited unless specifically lawful and approved under heightened controls.

Article IX. Financial integrity

1. The board approves the annual budget and material deviations.
2. No single person shall control initiation, approval, payment, reconciliation, and reporting of a material transaction.
3. Bank access and payment authority shall follow a written matrix with dual approval above board-set thresholds.
4. Restricted gifts shall be tracked and used according to lawful donor restrictions.
5. The Corporation shall prepare quarterly financial reports for the board and an annual financial package suitable for independent review.
6. Leadership compensation, major related-party transactions, and significant use of charitable assets shall be transparently disclosed internally and publicly to the extent stated in policy and lawful.

Article X. Safeguarding

1. The Corporation shall maintain a written safeguarding policy for minors and vulnerable adults.
2. Civil mandatory-reporting duties are never replaced by prayer, pastoral counseling, reconciliation, or internal investigation.
3. Programs involving minors shall use screening, role-appropriate background checks where lawful, two-adult or observable-environment practices, transportation/lodging controls, and documented training.
4. The Safeguarding and Integrity Committee may suspend access or duties immediately when reasonably necessary to protect a person or preserve an investigation, without prejudging final findings.

Article XI. Complaints, investigations, and non-retaliation

1. At least two reporting channels shall exist, including one that bypasses the ordinary chain of command.
2. Complaints about a chief executive, founder, director, lead clergy executive, safeguarding officer, or person able to influence intake shall go directly to the independent Safeguarding and Integrity Committee or its external designee.
3. Retaliation is independent misconduct and may support interim protection or discipline even if the underlying allegation is not substantiated.
4. Investigators shall be screened for conflicts and given written terms of reference.
5. Criminal, child-protection, emergency, or other legally reportable matters shall be referred externally as required; internal fact-finding must not obstruct external authorities.
6. Findings affecting a person's office or membership shall use notice, impartial decision maker, opportunity to respond, and appeal consistent with the Discipline and Appeals SOP.

Article XII. Pastoral ethics, conscience, and personal decisions

1. Pastoral/spiritual care shall not be represented as licensed medical, psychiatric, psychological, legal, or financial care unless the provider is actually qualified and acting within scope.
2. Leaders may offer counsel but shall not dictate competent adults' marriage, divorce, reproduction, healthcare, residence, education, career, personal finances, or voting choices as a condition of spiritual standing.
3. Confidential or intimate information shall not be used as leverage.

4. Sexual or romantic relationships are prohibited where a current pastoral, counseling, disciplinary, evaluative, or substantial supervisory power imbalance exists unless the power relationship is first ended and any additional ethics requirements are satisfied.

Article XIII. Doctrine, revelation, and epistemic integrity

1. Claimed revelation is not self-authenticating and cannot bypass the charter, bylaws, civil law, safeguarding, financial controls, or individual conscience.
2. Material corporate teaching changes should identify evidence, inference, interpretation, theological judgment, confidence, and known substantial disagreement.
3. Research functions may publish evidence that complicates preferred conclusions without retaliation.
4. No spiritual claim may adjudicate the claimant's own compensation, discipline, authority, succession, or investigation.

Article XIV. Exit and former-participant relations

1. Resignation from participation or office requires no spiritual release, payment, confession, or nondisparagement agreement.
2. Ordinary family and social relationships shall not be institutionally severed merely because of departure or criticism.
3. Corporate property must be returned and lawful debts or contractual obligations remain enforceable, but resignation does not forfeit personal property, earned wages, or civil rights.
4. Records concerning former participants remain subject to privacy, retention, litigation-hold, and safeguarding rules.

Article XV. Records and transparency

1. The Corporation shall keep permanent records of board/member actions as required by law and appropriate accounting records.
2. The public governance page should include current directors, principal officers, core rights, complaint channels, safeguarding contact, bylaws or a governance summary, annual financial transparency report, and external integrity review findings/remediation summaries when available.
3. Confidentiality may protect victims, complainants, personnel, privileged advice, donors, security, and legally protected information; it shall not be used to conceal institutional misconduct.

Article XVI. Meetings, action, and minutes

1. Notices, quorum, electronic participation, and written consents shall comply with Tennessee law and the selected member/nonmember schedule.
2. Board minutes shall document material decisions, conflicts and recusals, adviser reliance, comparability data for insider compensation, vote totals, and follow-up ownership without recording unnecessary confidential details.
3. The secretary maintains the corporate record book and amendment history.

Article XVII. Amendment and entrenchment

1. Ordinary bylaws may be amended by two-thirds of all voting directors then in office after at least seven days' written notice containing the proposed text, unless the charter or selected schedule requires more.
2. An amendment that would materially diminish freedom of conscience, non-retaliation, safe exit, no-shunning protections, founder limitations, board independence, complaint independence, safeguarding, financial conflict controls, or entrenchment follows the charter's heightened amendment process.

3. No emergency power may suspend an entrenched protection.
4. Every proposed amendment shall include a written rights-impact statement and identify whether any affected person has a conflict.

Article XVIII. External integrity review and annual certification

1. The Corporation shall commission an external institutional integrity review within 18 months after public launch and at least once every three years thereafter.
2. The reviewer shall have reasonable access to policies, board minutes relevant to scope, complaint/safeguarding statistics, financial controls, leadership certifications, and remediation records, subject to privilege and lawful privacy limits.
3. The board shall adopt a written remediation response and track actions to closure.
4. Each director, senior officer, senior spiritual leader, safeguarding lead, and finance lead shall complete an annual integrity certification.

Article XIX. Indemnification and insurance

The Corporation may indemnify and insure directors, officers, employees, and agents to the maximum extent lawful, but no internal indemnification provision excuses intentional wrongdoing, personal financial benefit to which a person is not entitled, unlawful distributions, intentional criminal violations, retaliation, or misconduct that law makes non-indemnifiable.

Article XX. Transition and severability

1. The initial board shall adopt a transition plan to reach full board independence and committee structure within 180 days of incorporation.
2. If any provision is held invalid, remaining provisions continue to the maximum lawful extent, and the board shall adopt the closest lawful substitute preserving the original integrity purpose.

Schedule M - Statutory Voting-Member Model

Use only if the charter states that the corporation will have members.

1. Voting membership

Voting membership should be deliberately narrower than ordinary attendance or participation. A voting member must be an adult who voluntarily applies, receives the governing documents and Participant Bill of Rights, completes a reasonable orientation, affirms the mission (not personal loyalty to a leader), and is admitted under a nondiscriminatory process consistent with the organization's lawful religious criteria.

2. Rights

Voting members may: elect at least a majority of voting directors from a slate produced by the independent Governance and Nominating Committee; vote on charter amendments and entrenched-rights reductions; vote on dissolution or merger where law or charter requires; inspect records to the extent provided by law; and petition the board under procedures in these bylaws.

3. No ownership

Membership creates no property, equity, refund, distributive, or beneficial ownership interest in corporate assets.

4. Resignation

A member may resign at any time by any clear communication. Resignation is effective on receipt and requires no interview, explanation, release, payment, or leader approval.

5. Discipline / termination

Membership discipline must use written grounds, notice, opportunity to respond, impartial decision maker, proportional action, and appeal. Good-faith disagreement, criticism, external reporting, refusal to donate, refusal of optional religious practice, or resignation from an office are not disciplinary grounds.

6. Member meetings

Hold at least one annual member meeting. Provide at least the notice required by Tennessee law and additional notice required for director removal, amendments, merger, dissolution, or entrenched-rights matters. Remote participation should be allowed where lawful and identity/voting integrity can be reasonably protected.

7. Quorum and voting

Recommended default: quorum is 20% of eligible voting members or 25 members, whichever is smaller, but never fewer than 10 when the corporation has at least 10 voting members. Ordinary matters are decided by a majority of votes cast unless law, charter, or bylaws require more. Entrenched-rights changes require the charter threshold.

8. Member nominations

Members may propose qualified director candidates by petition, but all candidates undergo the same independence/conflict screen. The process shall not permit a founder, family, staff bloc, or donor bloc to evade independence requirements.

Schedule N - No-Statutory-Member Model

Use only if the charter states that the corporation will not have statutory members.

1. Participants are not corporate members

Terms such as congregant, participant, affiliate, covenant participant, minister, donor, volunteer, or community member describe religious/community relationships only and do not confer statutory membership rights.

2. Participant Assembly

At least annually, the board shall convene an open Participant Assembly for governance reporting, questions, nominations, policy feedback, and presentation of the integrity dashboard. The assembly is advisory unless the charter is amended to create statutory members.

3. Board nomination safeguards

The Governance and Nominating Committee solicits candidate suggestions from participants, former directors, qualified outside advisers, and community stakeholders. At least one-third of each regular board-election slate should originate from sources other than the founder and sitting executive staff when feasible.

4. Board election

New directors are elected by the sitting board from the screened slate. A founder or chief executive may not vote if doing so would be decisive in creating or preserving a non-independent majority. No person may appoint a director unilaterally unless the charter expressly creates that appointment right and the appointment cannot defeat the two-thirds independence requirement.

5. Entrenched amendment substitute for member vote

Because there are no statutory members, any proposal to materially diminish an entrenched protection requires the enhanced board process in the charter plus an external adverse-rights review. The proposed amendment and review must be published to participants at least 30 days before the second board vote, with a channel for written comments.

6. Participant petitions

A petition signed by the greater of 25 regular adult participants or 10% of the average adult attendance over the prior six months may require the board to place a governance concern on the agenda of its next regular meeting, unless counsel determines the request is unlawful, privileged, duplicative, or threatens a person's safety/privacy. The board shall publish a response or explain why confidentiality prevents publication.

Board Reserved Powers Schedule

The board may delegate preparation and administration but retains final authority for these matters:

1. Appointing, evaluating, compensating, suspending, and removing the chief executive.
2. Appointing/removing principal corporate officers.
3. Approving the annual budget and material unbudgeted commitments.
4. Opening/closing bank or investment accounts and establishing signing/payment authority.
5. Borrowing, liens, guarantees, major leases, real-estate transactions, and disposition of substantially all assets.
6. Executive compensation and any material benefit to a disqualified or related person.
7. Related-party transactions and insider loans.
8. Selection of external accountants/auditors and receipt of their reports.
9. Approval of safeguarding policy and appointment/removal of the safeguarding lead.
10. Complaints and investigations involving directors, founder, chief executive, lead clergy executive, safeguarding lead, finance lead, or any person able to compromise the ordinary complaint process.
11. Retention of independent investigators for senior-leadership matters.
12. Final discipline/removal of a director or chief executive.
13. Approval of settlements involving allegations of abuse, retaliation, fraud, or senior-leadership misconduct.
14. Adoption/amendment of the charter, bylaws, Participant Bill of Rights, Founder Covenant, conflict policy, safeguarding policy, complaint policy, investigation protocol, and external-review mandate.
15. Creation/dissolution of board committees and designation of committee authority.
16. Merger, conversion, dissolution, affiliation that transfers control, or change in denominational/canonical control.
17. Approval of an arrangement that materially combines religious authority with participant housing, employment, education, healthcare support, or control of personal assets.
18. Response to an external institutional integrity review and closure of high-risk remediation items.

No person who is the subject or direct beneficiary of a reserved-power decision may control the decision process.

Founder Covenant

I, [[FOUNDER_NAME]], acknowledge that founder status is historical and does not confer ownership, infallibility, veto, life tenure, automatic succession rights, immunity, or entitlement to compensation.

While serving [[ORGANIZATION_NAME]], I will:

- submit to the charter, bylaws, Participant Bill of Rights, safeguarding rules, conflict rules, complaint procedures, and lawful board authority;
- recuse from my compensation, family employment, related-party transactions, complaints against me or close associates, investigator selection for those complaints, and succession matters in which I or a related person has an interest;
- not claim divine, prophetic, charismatic, or historical authority as a reason to override another person's consent or the Corporation's controls;
- not direct shunning, retaliation, threats, humiliation, or material pressure against a critic, complainant, dissenter, former participant, director, investigator, or reporter;
- cooperate with lawful internal and external investigations, preserve evidence, and refrain from witness contact when instructed by the independent investigator or board;
- not use confidential pastoral, personnel, financial, or intimate information as leverage;
- accept that the board may suspend or remove me from any corporate office according to the governing documents;
- disclose actual, potential, and apparent conflicts promptly; and
- renew this covenant annually while I hold a corporate, spiritual, paid, or board-appointed leadership role.

Signature: _____ Date: _____

Witness / Board Secretary: _____

Board Independence Standard

Annual independence test

A voting director is independent only when the Governance and Nominating Committee documents that none of the following materially impair objective judgment:

- current employment by the organization or supervision by an employee;
- immediate-family relationship with a senior employee, executive founder, or director;
- material vendor, landlord, lender, borrower, contractor, or consulting relationship;
- material gifts, housing, tuition, personal support, or other economic dependency from the organization or a senior leader;
- current pastoral/counseling dependency on an executive whose performance the director oversees;
- partnership, shared business, or material joint property with a senior executive;
- relationship that creates a reasonable appearance that the director cannot evaluate leadership independently.

Independence is reassessed whenever circumstances change. A director can remain on the board while temporarily non-independent only if the charter threshold remains satisfied and the conflict is managed; otherwise the board must cure the composition promptly.

Composition control

At least two-thirds of voting directors shall be independent. Staff directors, if any, shall never form a blocking minority sufficient to prevent investigation, compensation action, or executive removal under ordinary voting thresholds.

Legal and Compliance Source Notes

Checked September 18, 2026. Counsel should verify current law before filing/adoption.

Tennessee nonprofit corporation law

- **Tenn. Code Ann. § 48-52-102 (2025), Charter.** Requires charter items including public/mutual benefit classification, religious-corporation statement when applicable, registered office/agent, incorporators, principal office, nonprofit statement, whether the corporation will have members, and dissolution provisions. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-52/section-48-52-102/>
- **Tenn. Code Ann. § 48-52-106 (2025), Bylaws.** Bylaws may regulate corporate affairs if not inconsistent with law or charter. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-52/section-48-52-106/>
- **Tenn. Code Ann. § 48-58-103 (2025), Number of directors.** Tennessee nonprofit board must consist of three or more natural persons; this pack intentionally sets a higher internal standard after formation. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-103/>
- **Tenn. Code Ann. § 48-58-301 (2025), Director standards.** Good faith, ordinary prudence, best interests, disclosure of material information; religious-corporation reliance provision. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-3/section-48-58-301/>
- **Tenn. Code Ann. § 48-58-108 (2025), Director removal.** Includes board removal of a board-elected director without cause by two-thirds unless charter/bylaws require greater threshold. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-108/>
- **Tenn. Code Ann. § 48-58-702 (2025), Conflicting-interest transactions.** Addresses circumstances in which conflicting-interest transactions are protected from equitable relief/damages. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-7/section-48-58-702/>
- **Tenn. Code Ann. § 48-66-101 (2025), Corporate records.** Requires permanent records of member/board actions and appropriate accounting records. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-66/part-1/section-48-66-101/>
- **Tenn. Code Ann. §§ 48-67-101 to -102.** Tennessee Nonprofit Corporation Act generally applies to religious corporations subject to enumerated exceptions; religious doctrine/canon-law conflicts receive constitutional treatment described in § 48-67-102. <https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-67/section-48-67-102/>

Tennessee child safety

- Tennessee Department of Children's Services, **Report Child Abuse.** DCS states everyone in Tennessee is a mandated reporter of suspected child abuse or neglect; hotline 1-877-237-0004 and online reporting at <https://apps.tn.gov/carat/>. Source page: <https://www.tn.gov/dcs/program-areas/child-safety/report-child-abuse.html> (or current Tennessee DCS successor URL).

Federal tax-exempt compensation

- IRS, **Rebuttable presumption - Intermediate sanctions.** Describes advance approval by a conflict-free authorized body, appropriate comparability data, and contemporaneous documentation. <https://www.irs.gov/charities-non-profits/charitable-organizations/rebuttable-presumption-intermediate-sanctions>
- IRS, **Intermediate sanctions - Compensation.** Reasonable compensation reflects fair-market value for like services by like enterprises under like circumstances and considers forms of compensation. <https://www.irs.gov/charities-non-profits/charitable-organizations/intermediate-sanctions-compensation>
- IRS Publication 557 (Jan. 2025 version currently listed), **Tax-Exempt Status for Your Organization**, includes excess-benefit/rebuttable-presumption guidance. <https://www.irs.gov/publications/p557>

- IRS Publication 1828, **Tax Guide for Churches and Religious Organizations** (IRS currently lists Aug. 2015 edition). Verify current online IRS guidance in addition to the publication before final adoption.
<https://www.irs.gov/forms-pubs/about-publication-1828>

Drafting note

This pack deliberately imposes governance controls more protective than many statutory defaults. Counsel should determine which protections belong in the filed charter versus bylaws or policies, considering amendment mechanics, religious-autonomy doctrines, employment/ministry rules, insurance, tax posture, and practical governance capacity.